

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Gurjot Kaur	Team: Team # 6	CCRB Case #: 200514485	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 11/27/2005 12:30 PM	Location of Incident: 40 West Mosholu Parkway, Tracy Towers, in the Bronx.	Precinct: 52	18 Mo. SOL 5/27/2007	EO SOL 5/27/2007	
Date/Time CV Reported Tue, 11/29/2005 10:10 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/01/2005 3:08 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Maurice Harrington	06286	934992	052 PCT
2. Officers			

Officer(s)	Allegation	Investigator Recommendation
A.POM Maurice Harrington	Discourtesy: PO Maurice Harrington spoke rudely to § 87(2)(b)	
B.POM Maurice Harrington	Force: PO Maurice Harrington used physical force against § 87(2)(b)	
C. Officers	Force: Officers used physical force against § 87(2)(b)	

Synopsis

§ 87(2)(b) filed a complaint with the CCRB by telephone on December 1, 2005 regarding an encounter that occurred November 27, 2005 at 3016 Webster Avenue in the Bronx. At approximately 12:30 PM, § 87(2)(b) went to his grandmother's house on 40 West Moshulu Parkway, Tracy Towers, in the Bronx, where he got into an altercation with his Uncle § 87(2)(b)'s girlfriend. An unknown person called 911 and officers from the 52nd Precinct responded. § 87(2)(b) was handcuffed and he told the arresting officer, PO Harrington (identified by name on uniform) that his handcuffs were too tight. PO Harrington told him to "shut the hell up" and proceeded to push § 87(2)(b) in the back. At the precinct, PO Harrington continued to curse and tell § 87(2)(b) to "shut the hell up" when he complained about the tightness of his cuffs. PO Harrington pushed § 87(2)(b) to the ground and five other officers joined him and dragged § 87(2)(b) to the "private" bathroom in the back of the precinct. The officers proceeded to kick and punch § 87(2)(b) in the back for approximately ten minutes. § 87(2)(b) was finally taken to a holding cell. His injuries included swelling in the eye area. § 87(2)(b) was eventually transported to Jacobi Hospital where he was prescribed Motrin for the pain. PO Harrington had alleged that § 87(2)(b) kicked him in the ankles in the arrest report.

§ 87(2)(b) was contacted by the CCRB by telephone on December 7, 2005 and an interview was scheduled for December 9, 2005. § 87(2)(b) cancelled his appointment and another interview was scheduled for December 14, 2005. The investigator contacted § 87(2)(b) and rescheduled for December 23, 2005. § 87(2)(b) missed his appointment on December 23, 2005. A missed appointment letter was mailed. The appointment was rescheduled for January 5, 2006 but it was rescheduled because the investigator was out sick. Following that, § 87(2)(b) was contacted four times by telephone and messages were left to contact the CCRB. A final please call letter was mailed to § 87(2)(b). It was explained to § 87(2)(b) that if he did not make an effort to contact the CCRB, his case would be closed without a full investigation. § 87(2)(b), § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: